

of the Board under this Act in relation to His Majesty's Coastguard shall be exercised and performed by the Admiralty, and the officers and men of His Majesty's Coastguard shall be subject to the Naval Discipline Act and be borne on the books of one of His Majesty's ships in commission, with such respective ranks and ratings and such pay and emoluments as may be determined by the Admiralty.

(2) Any order made under this section shall be revoked as soon as the Admiralty is of opinion that the emergency has ended, but without prejudice to anything previously done thereunder.

3.—(1) This Act may be cited as the Coastguard Act, 1925. Short title,
extent,
saving and
repeal.

(2) This Act shall extend to the Isle of Man.

(3) Save as is in this Act otherwise expressly provided, all laws in force at the commencement of this Act for the protection of the coastguard, and all rights, authorities, powers, privileges and immunities which at the commencement of this Act are vested in, or may be had or exercised by the coastguard shall be applicable to, and be vested in, and had and exercised by His Majesty's Coastguard.

(4) The Coast-guard Service Act, 1856, is hereby repealed. 19 & 20 Vict.
c. 83.

CHAPTER 89.

An Act to amend the Education (Scotland) Act, 1908, and the Education (Scotland) Act, 1918.

[22nd December 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. In the Education (Scotland) Act, 1918, there shall be inserted after the second paragraph of subsection (9) of section eighteen the following paragraph :— Amendment
of 8 & 9
Geo. 5.
c. 48. s. 18.

“ Provided also that if before the expiry of ten years from the transfer of any such school the

education authority are of opinion as aforesaid and so represent, and the trustees by whom the school was transferred, or their successors in office or representatives, formally intimate to the Department that they concur with the authority in their opinion as represented, then in such case, if the Department are of the same opinion and so signify, it shall be lawful for the education authority forthwith to discontinue or to hold, maintain, or manage the school as aforesaid, subject to the like provision with respect to compensation."

2. At the end of paragraph 8 of the Second Schedule to the Education (Scotland) Act, 1918, there shall be inserted the following words :—

"and provided also that in the case of the education authorities for the counties of Argyll, Caithness, Inverness, Orkney, Ross and Cromarty, Shetland and Sutherland, if at least one meeting is held in each quarter of each year, the total number of meetings need not exceed six in any one year."

Amendment
of 8 & 9
Geo. 5.
c. 48. s. 3.

3. For subsection (2) of section three of the Education (Scotland) Act, 1918, the following subsection shall be substituted: "A school management committee shall, subject to any regulations and restrictions made by the education authority, have all the powers and duties of that authority in regard to the general management and supervision of the school or group of schools, including attendance thereat: Provided that the education authority shall in every case themselves retain, exercise and perform all their powers and duties in regard to—

"(a) the raising of money by rate or loan and the control of expenditure;

"(b) the acquisition or holding of land;

"(c) the appointment, transfer, remuneration and dismissal of teachers;

"(d) the appointment of bursars, and the exercise of the powers conferred by the section of this Act relating to power to facilitate attendance at secondary schools and other institutions; and

“ (e) the recognition, establishment or discontinu-
 “ ance of intermediate or secondary schools or
 “ of centres of advanced technical instruction.”

4. To paragraph (3) of section three of the Educa- Amendment
of 8 Edw. 7.
c. 63.
s. 3 (3).
 tion (Scotland) Act, 1908, as amended by paragraph
 5 (a) of the Fifth Schedule to the Education (Scotland)
 Act, 1918, there shall be added the following words :

“ Provided that if in any case an education authority
 can satisfy the Scottish Education Department that the
 provision of facilities under this paragraph would involve
 less cost than the provision of new school accommodation
 or the continuance of existing school accommodation
 which would otherwise be necessary for any part of their
 area, it shall be within the power of that education
 authority, subject to the approval of the Department, to
 provide such facilities without having special regard
 to the circumstances of the parents of the children
 concerned, or to the distance between the residence of
 any such child and the school.”

5. For paragraph (4) of section three of the Educa- Amendment
of 8 Edw. 7.
c. 63. s. 3.
 tion (Scotland) Act, 1908, as amended by the Education
 (Scotland) Act, 1918 (which section relates to additional
 general powers of education authorities), there shall be
 substituted the following subsection :—

“ (4) In contributing towards, or where deemed
 expedient providing for, the maintenance and
 education in homes or other institutions within or
 without the education area of the education
 authority (with due regard to the religious per-
 suasion of the parents) of—

“ (a) epileptic or crippled or defective children 6 Edw. 7.
c. 10.
 within the meaning of the Education of Defective
 Children (Scotland) Act, 1906; or

“ (b) other children who are certified by the
 school medical officer as requiring special
 arrangements for their education provided that
 the arrangements proposed have been approved
 by the Department;

and in paying the cost of conveying such children
 to and from such homes or institutions.”

Extent,
citation and
construc-
tion.

6.—(1) This Act shall extend to Scotland only.

(2) This Act may be cited as the Education (Scotland) Act, 1925, and shall be included among the Acts which may be cited together as the Education (Scotland) Acts, 1872 to 1925.

CHAPTER 90.

An Act to simplify and amend the law with respect to the making and collection of rates by the consolidation of rates and otherwise, to promote uniformity in the valuation of property for the purpose of rates, to amend the law with respect to the valuation of machinery and certain other classes of properties, and for other purposes incidental to or connected with the matters aforesaid. [22nd December 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I.

RATING.

Rating
authorities.

1.—(1) The council of every county borough and the council of every urban and rural district shall be the rating authority for the borough or for the county district, and from and after the appointed day no authority or person other than the council shall have power to make or levy any rate within the borough or district.

(2) As from the appointed day all powers and duties of the overseers of the poor in relation to the making, levying, and collection of rates, and of any other person who by virtue of any local Act has powers in that behalf, shall in every rating area be exercised and performed by the rating authority.